Bocconi

Liberté Égalité Fraternité

SMART SURVEILLANCE FRANCE

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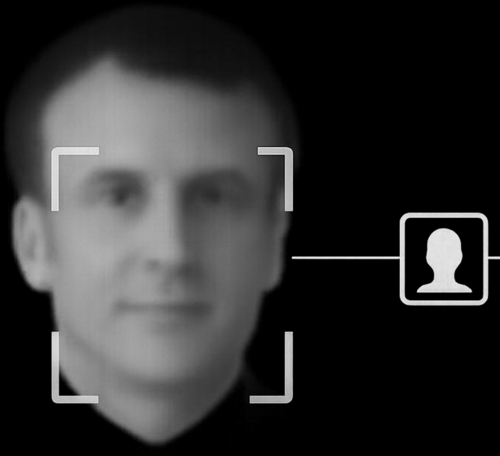
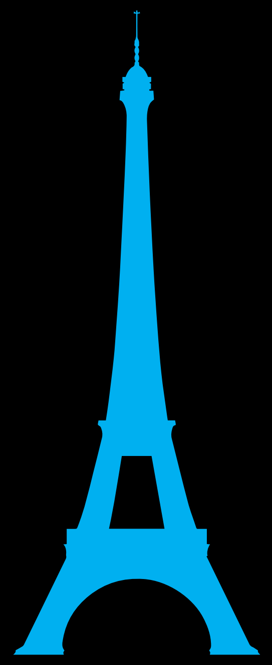


Emmanuel Macron
47 Ans
Palais de l'Élysée, Paris
Président

RECHERCHÉ

France: experimentation, regulation, and controversy

Over **75 countries** have adopted AI surveillance tools.
Deployed in public safety, border control, and large-scale events.
Critical issues: **data protection**, algorithmic **bias**, **over-surveillance**, lack of **transparency**.



- AI cameras in **urban areas**, **public transport**, **airports**, and **large events**.
- Temporary use of AI-based video analysis during the **Paris 2024 Olympics** to detect anomalies (excluding facial recognition).
- March 2025: **Parliament** extends AI surveillance until 2027.
- **CNIL** and **Constitutional Council** raised concerns about the lack of a clear legal framework for biometric surveillance and data protection.
- The **French Defense Ministry** integrates AI into surveillance and command systems, emphasizing ethics, human oversight, data sovereignty, and cyber resilience.
- From 2015 to 2023, French police unlawfully used Israeli **facial recognition software**, prompting a 2023 court ruling that deemed it illegal.

Digital Priorities

Digital Sovereignty and Resilience

- Protect critical infrastructure
- Invest in innovation and digital transformation
- Develop clear regulatory frameworks
- Build digital skills through training

International Digital Diplomacy

- Lead in global digital governance
- Promote balanced international norms
- Strengthen strategic global partnerships

Cybersecurity Priorities

Protection Against Cyber Threats

- National cybersecurity strategy
- Crisis management and rapid response

Institutional Coordination

- Collaboration of agencies & ministries
- Integration of cyber defence

International Cooperation

- Multilateral engagement
- Collective response mechanisms
- Global standards for secure cyberspace

Multi-year Investments Allocated: 310M€

Current & Planned AI Usage

Building a National AI Ecosystem

- Develop education and talent
- Promote open data for AI innovation
- Ethics and Transparency

Strategic Positioning & Leadership

- Mistral AI: Lead in AI innovation
- Advance tech through investment, regulation, and collaboration
- LLaMandement

Sector-Specific Applications

Multi-year Investments Allocated: 109B€

Sources: Ministère de l’Europe et des Affaires étrangères, Strategie Cyber France 2030, OECD site.

AI for Defence

Strategic & Ethical Framework

Ethical AI aligned with **EU laws** and **values**.

AMIAD oversees AI in defense.

Collaboration with EU for tech sovereignty and security.

Public Safety & Surveillance

Automated video analysis for **crowd monitoring** and **event security**.

AI tools for **border surveillance** and **counter-terrorism**.

Predictive **policing** and **crisis response** support.

Example: AI used at Paris 2024 Olympics for real-time threat detection with privacy safeguards.

Operational Capability & Tech Sovereignty

AI supports **real-time** decision-making and intelligence.

Enhances **situational awareness** in combat systems.

Powers autonomous drones, vehicles, and **cyber defense**.

MMCM system detects and neutralizes naval mines **autonomously**.

Sources: Ministère des Armées, Sommet pour l'Action sur l'IA enjeux de Defense (2025) and AI Task Force Report (2019).

AI Act

ART 5, par 1: *The following AI practices shall be* ***prohibited****:*

e) *[...] use of AI system that create or expand facial recognition* ***databases*** *through [...] CCTV footage*

h) *the use of 'real-time'* ***remote biometric identification*** *systems in publicly accessible spaces for the purposes of law enforcement, unless [...] strictly necessary for one of the following objectives:*

(i) Targeted search for victims of abduction, trafficking, sexual exploitation, or missing persons

(ii) Prevention of a specific, substantial and imminent threat to life or physical safety, or of a genuine and foreseeable terrorist attack

(iii) Identification or localization of a person suspected of having committed a serious criminal offence, punishable under national law by at least four years of imprisonment

Considerations about exceptions for surveillance by law enforcement[1]:

- Assess the impact on **freedom** and **personal rights**
- Adopt proportionate **safeguards** in accordance with national law
- Real time **biometric identification** shall be authorized by an independent administrative authority and registered in a specific EU database
- Member states must submit **annual reports** of the use of real-time biometric identification

Providers of high-risk AI systems (e.g.: facial identification), have specific requirements like like establishing a risk and quality management system, have data governance policies, and grant an appropriate level of cybersecurity[2]

EPDB 05/2022

Law n. 78-17, 6 Jan 1978

Law Enforcement Directive

GDPR

ART 9, par 1: *[...] processing of [,,,] biometric data for the purpose of uniquely identifying a natural person [...] shall be prohibited.*

Par 2 presents exceptions such as explicit consent, legal obligations, vital interests, public health, or public interest, provided that appropriate safeguards are in place.

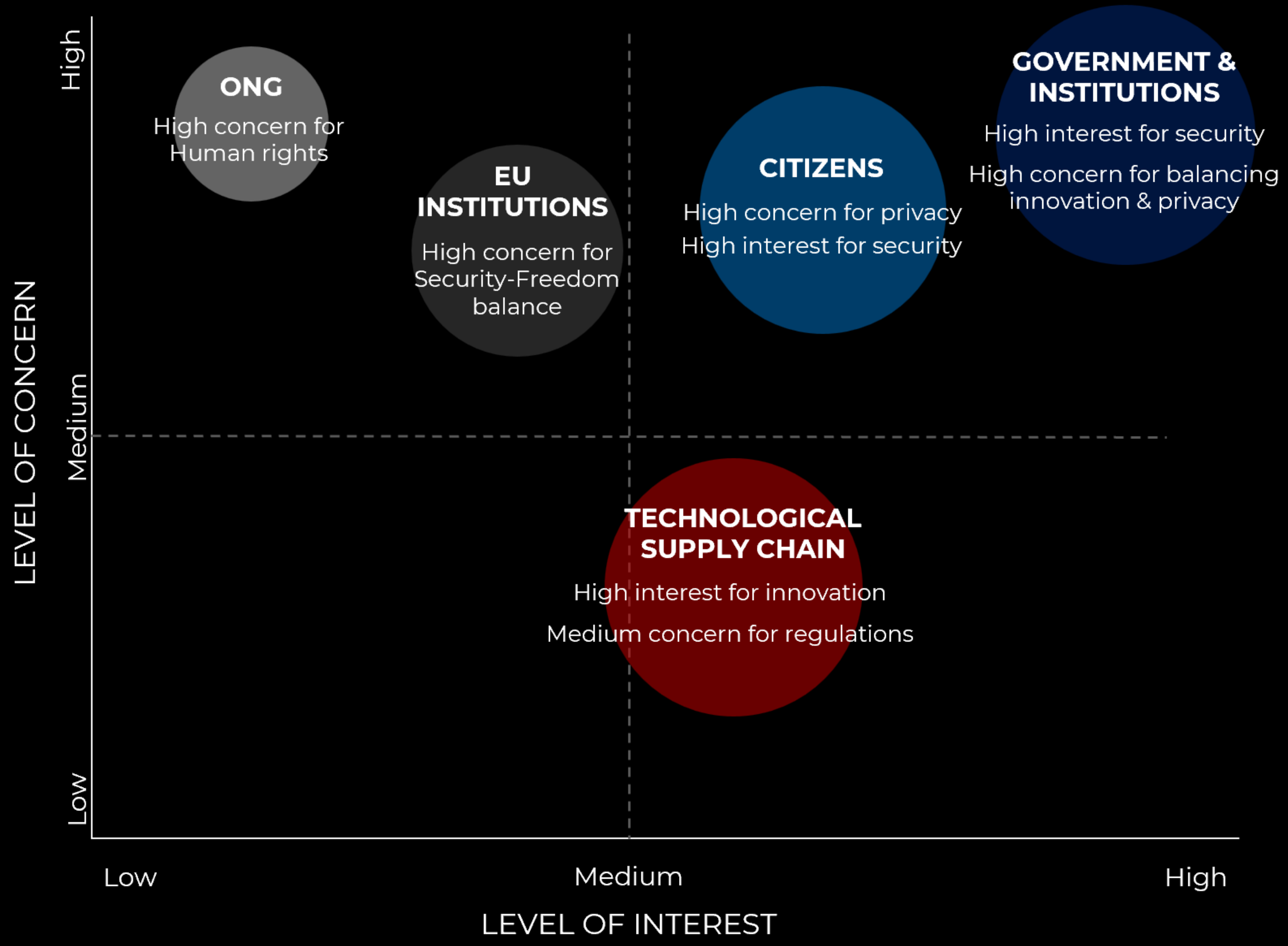
1: Summary based on ART. 5, para 2,3,6. 2: Summary based on ART. 8-17.

Stakeholders

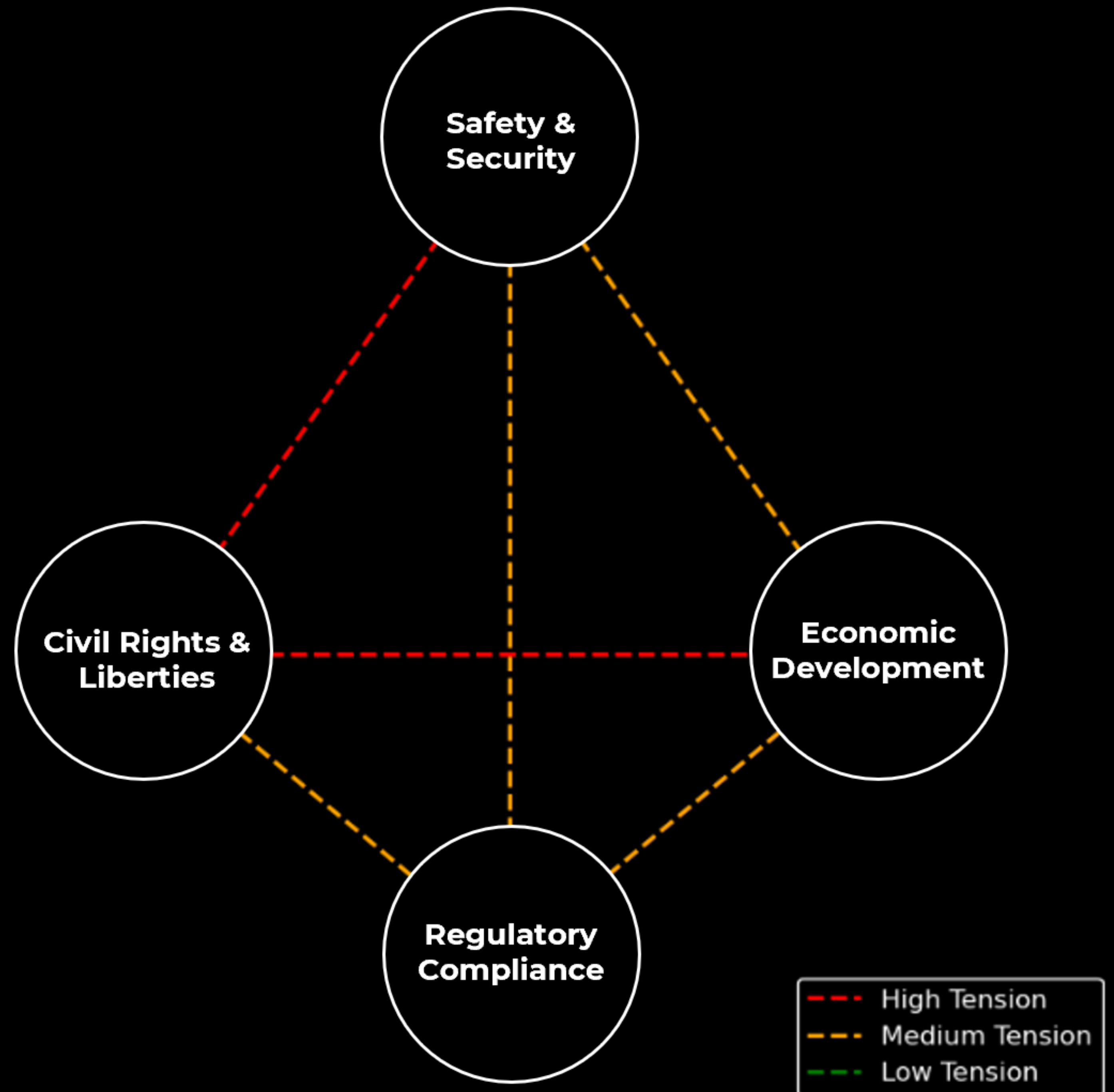
	Citizens	Government & Institutions	Supply Chain
Who	French **Citizens** and visitors	**20 national institutions** & bodies, several international ones	**Major firms** like Thales, Mistral, Idemia Airbus, and Safran, as well as **startups** such as Wintics, Videtics, and ChapsVision.
Needs	Citizens seek **safety** in public spaces and often see AI surveillance as a useful tool for **crime prevention**, criminal detection and identifying threats during major events	French institutions see AI as key to strengthening **national security** and managing major events, while also **fostering digital sovereignty** and **tech innovation**	Their main goal is to maintain stable partnerships with the public sector and deliver reliable, **efficient** and **secure** solutions which increase profit margins → **€1,7MLD and 850 jobs market***
Concerns	▪ How their personal and biometric data is managed ▪ Who has access to the data ▪ How is it stored and **protected** ▪ Who can use it ▪ Many fear excessive state intrusion and the normalization of **mass surveillance**. Lack of transparency, algorithmic bias, and potential **misuse** of data erode public trust	▪ Ensuring AI supply chain **complies** with GDPR, AI Act, and cybersecurity norms ▪ Need for **oversight of private tech partners** ▪ International bodies push for ethical, rights-based frameworks ▪ Risk: imbalance between security and civil liberties	▪ Risk of contract loss due to system errors or data breaches ▪ **Reputational damage** from privacy or security failures ▪ **Regulatory pressure** from the AI Act (transparency, audits, data traceability) ▪ Concern over operational disruption from cyberattacks or legal shifts ▪ Care for **intellectual property**

Sources: Réponses de l'Alliance pour la confiance numérique au questionnaire des rapporteurs.

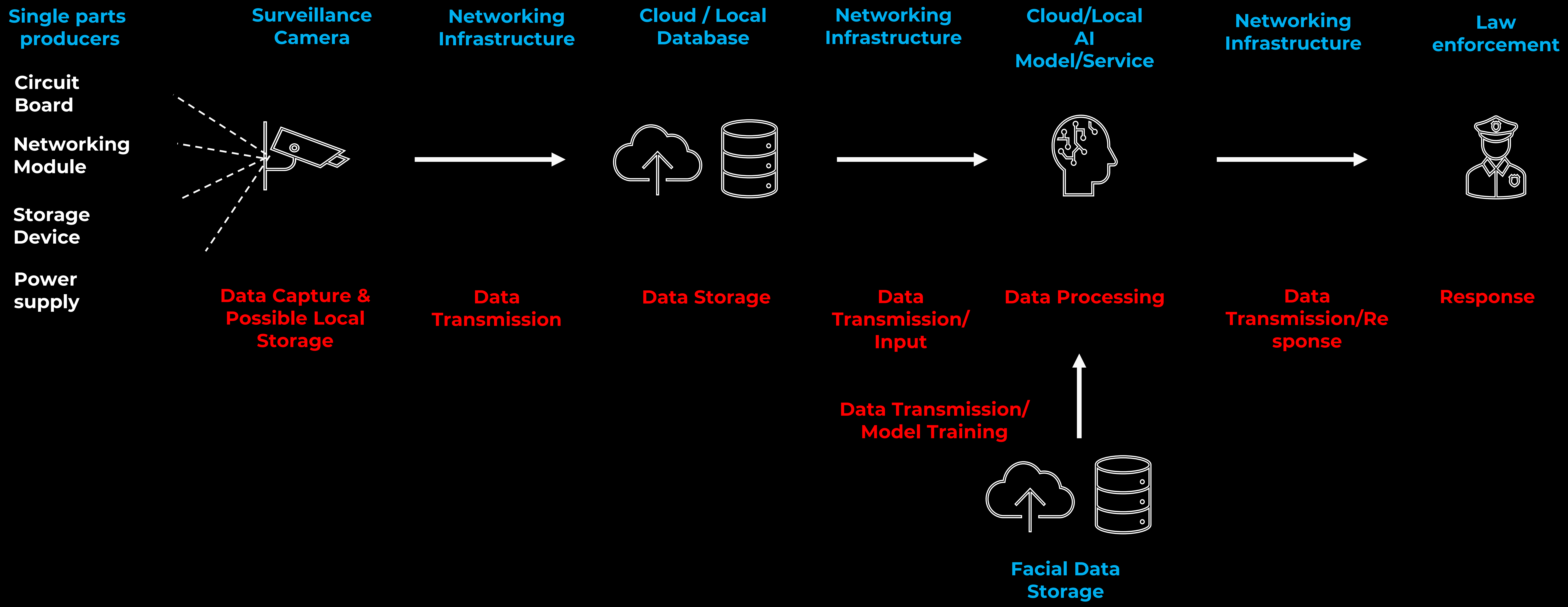
Stakeholder Interest/Concern Map



Tensions between Stakeholders' Interests



Supply Chain



Risk Mapping

Economic Risks

- Fines for GDPR or AI Act violations
- Legal claims from affected individuals
- Costs to restore and upgrade IT infrastructure
- Loss of trust from partners and clients
- Reputation damage for companies involved in misuse

Societal Risks

- Decline in public trust toward institutions
- Erosion of privacy and civil rights
- Behavioral effects due to constant surveillance
- Harm to tourism image in major cities

National Security Risks

- Reduced effectiveness of police or military
- Data integrity risks with external/ cloud providers
- Weakened response to hybrid threats
- Strategic loss if systems are exploited by adversaries

Cybersecurity Risks

- Security breaches and data leaks
- Facial recognition errors
- AI poisoning and model manipulation
- Algorithmic bias and discrimination
- Deepfakes and image manipulation
- Lack of transparency in training data

If France Does Not Invest

- Higher crime rates and public safety threats.
- Delayed response to emergencies
- Economic loss → €1,7 MLD
- Loss of control over AI implementation
- Public pushback

Policy & Governance

Scope

Secure the entire AI-based public video surveillance supply chain in France.

Preventing, detecting, and managing cyber threats ensuring integrity, availability, and confidentiality.

Promote technological resilience, citizen safety, and public trust in AI.

HAIASP (Haute Autorité pour l'IA et la Surveillance Publique)

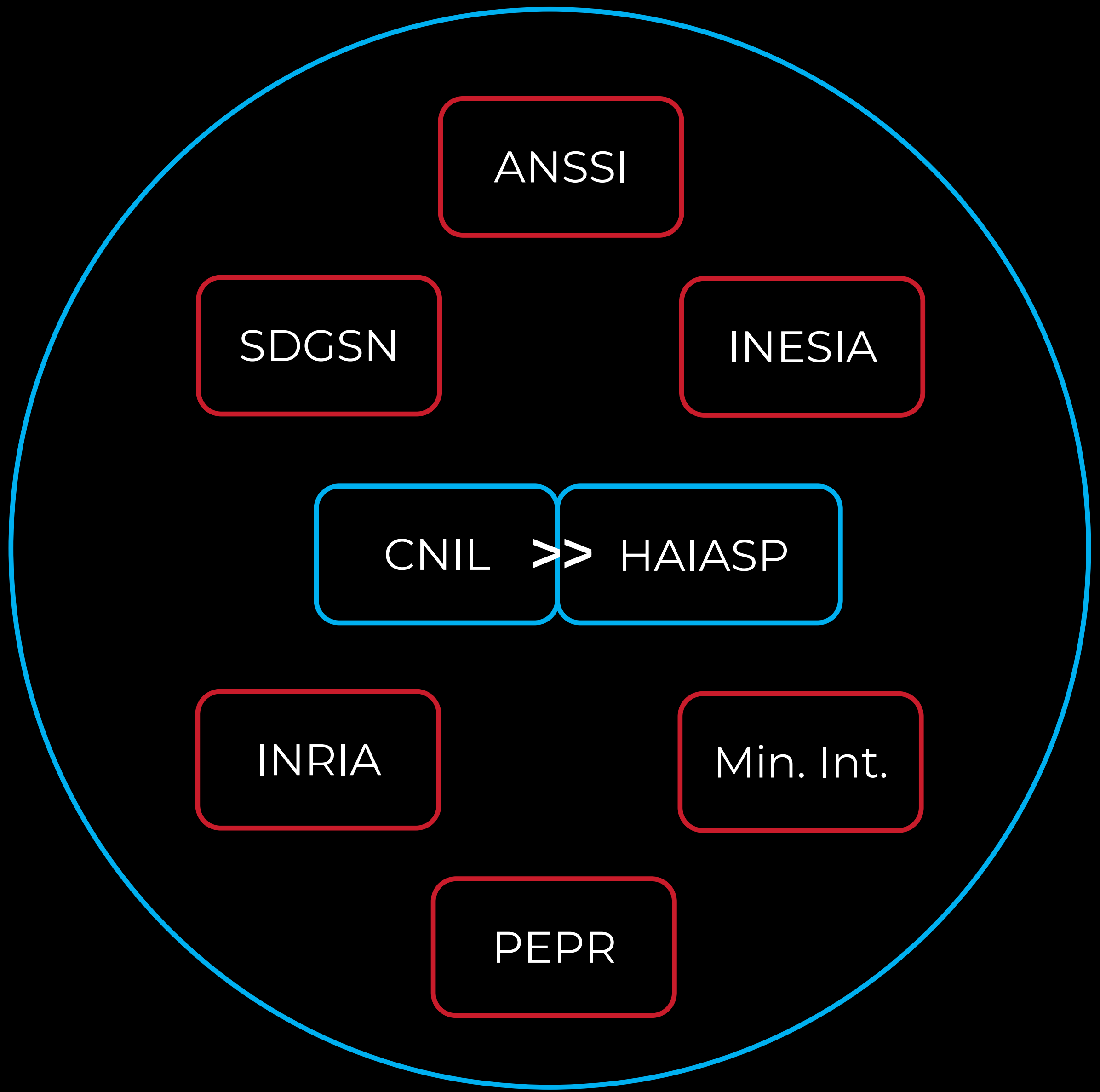
National Authority for AI Surveillance Governance.
Autonomous body responsible for the implementation of the policy.
It will report to CNIL and will collaborate with designated entities.

Policy Alignment

Compliance with EU regulations, including the **GDPR**, the AI Act, and cybersecurity directives.

Cross-sector coordination body involving national authorities, private sector, academic experts, and relevant EU institutions.

Supports France's ambition to lead in shaping and overseeing European standards and ethical frameworks for AI.



Action Plan & Resilience Strategies

Objectives

I. **Cybersecurity & Technological Sovereignty**

a. Ensure cybersecurity of AI-based video surveillance systems' supply chain

b. Maintain and improve technological sovereignty

c. Promote technological development and innovation

II. **Fundamental Rights & Data Protection**

d. Protect citizens' fundamental rights

e. Protect personal data and prevent misuse or manipulation

f. Ensure compliance with GDPR and the AI Act

III. **Trust, Transparency & Governance**

g. Reinforce public trust through transparency

h. Ensure clear accountability

i. Foster collaboration with relevant stakeholders

	Description	Objectives Reached	Stakeholders
Action 1	Develop a methodology to assess risks in the AI video surveillance supply chain, identifying and mitigating risks related to security, privacy, and compliance.	**a.** Ensure cybersecurity of AI-based video surveillance systems' supply chain **i.** Foster collaboration with relevant stakeholders	Private Companies INESIA ANSSI
Action 2	Create a fund to support startups and companies working on enhancing security and development within the AI supply chain.	**a.** Ensure cybersecurity of AI-based video surveillance systems' supply chain **b.** Maintain and improve technological sovereignty **c.** Promote technological development and innovation	Private Companies French Tech Ministre déléguée chargée de l'Intelligence artificielle et du Numérique
Action 3	Establish a certification program to ensure AI surveillance systems comply with national and EU regulations, including GDPR and the AI Act.	**b.** Maintain and improve technological sovereignty **e.** Protect personal data and prevent misuse or manipulation **g.** Reinforce public trust through transparency	Private Companies INESIA ANSSI
Action 4	Create a centralized platform for sharing threat and vulnerability information between supply chain companies and public institutions.	**a.** Ensure cybersecurity of AI-based video surveillance systems' supply chain **i.** Foster collaboration with relevant stakeholders	Private Companies AGDSN COMCYBER INESIA

	Description	Objectives Reached	Stakeholders
Action 5	Implement a version control system for AI model updates, ensuring security, transparency, and regulatory compliance.	**a**. Ensure cybersecurity of AI-based video surveillance systems' supply chain **f**. Ensure compliance with GDPR and the AI Act **h**. Ensure clear accountability	Private Companies INESIA ANSSI
Action 6	Launch a public campaign to educate citizens about AI surveillance systems, certification processes, and relevant regulations.	**a**. Ensure cybersecurity of AI-based video surveillance systems' supply chain **d**. Protect citizens' fundamental rights **f**. Ensure compliance with GDPR and the AI Act **g**. Reinforce public trust through transparency	DICOD
Action 7	Establish an audit framework to monitor compliance with security, data protection, and transparency throughout the supply chain.	**a**. Ensure cybersecurity of AI-based video surveillance systems' supply chain **h**. Ensure clear accountability **f**. Ensure compliance with GDPR and the AI Act	Private Companies INESIA ANSSI

	Description	Objectives Reached	Stakeholders
Action 8	Define specific use cases for the policy through regular meetings, tracking data processing and ensuring compliance in different contexts.	**d**. Protect citizens' fundamental rights **g**. Reinforce public trust through transparency **i**. Foster collaboration with relevant stakeholders	Private Companies, CNIL ANTENJ Ministère de la Justice Ministère de l'Intérieur SGDSN INESIA
Action 9	Develop methods to reduce bias in AI models, ensuring fairness, transparency, and non-discrimination.	**a**. Ensure cybersecurity of AI-based video surveillance systems' supply chain **d**. Protect citizens' fundamental rights **e**. Protect personal data and prevent misuse or manipulation	Private Companies INRIA PEPR AI ANR INESIA
Action 10	Place clear signage in areas monitored by AI to inform citizens about surveillance and protect privacy rights.	**d**. Protect citizens' fundamental rights **g**. Reinforce public trust through transparency	Local municipalities Regulatory Authorities Public and Citizens

Thank you for your attention.